

Community Guide to the CUP Appeal: Record Evidence Gaps, Required Findings, Conditions, and Commissioner Withers' Questions

ZA2026-0024 | ZBA2026-0001 | ZCOA2026-0013

Purpose and use

This unofficial guide organizes the official County materials, certified July 1 hearing transcript, and filed appeal into the same eight headings under every issue. Commissioner Withers' questions and statements are placed inside the relevant points; they support factual concerns but do not mean he adopted every legal conclusion in the appeal. This guide does not amend the appeal, submit new evidence, or replace the official record.

1. Applicant's traffic-and-hazard burden

1. Question and Answer: Question: Who had to prove traffic safety before CUP approval? **Answer:** The applicant had that burden.

2. Official County Record: The CUP application requires the applicant to prove the site can be developed without undue traffic congestion and hazards. — **Official County CUP Application, p. 2**

3. Filed Brief Position and Quote: *"The burden rests with the Applicant — not the Appellant, not staff, and not the Board."* — **Filed Appeal Brief, p. 6, §III.A**

4. Why This Matters at the CUP Stage: A CUP is the County's land-use entitlement decision; the applicant's evidence supplies the factual basis for the required finding.

5. Documented Evidence Gap in the CUP Record: At the time of the CPC decision, the CUP record contained no applicant-submitted project-specific TIA, equivalent engineer-prepared study, or quantified project-specific traffic data. Luna said there was no project-specific traffic data "on record." — **Official Certified Transcript, TR 205–206**

6. Why This Is Appealable: A mandatory Section 24 finding is reviewable for substantial evidence in the record.

7. Why Approval Was Premature: The County made its traffic finding before the record contained a project-specific analysis supporting it.

8. What the BCC Must Decide: Whether the existing record nevertheless provided a sufficient basis for the required finding.

2. Applicant's written traffic response

1. Question and Answer: Question: Was "See attached" enough traffic proof? **Answer:** The filed brief concludes it was not.

2. Official County Record: The application stated "See attached." The attachment promised coordination, adequate parking/flow, and prayer-time coordination, and stated expected traffic would be significant. — **Official County CUP Application, pp. 6, 8–10**

3. Filed Brief Position and Quote: *"The record before the Board at the time of the vote contained not one page of a Traffic Impact Analysis submitted by the Applicant or any*

equivalent engineer-prepared traffic study.” — Filed Appeal Brief, p. 8, §IV.A

4. Why This Matters at the CUP Stage: The written justification is the applicant’s initial factual showing that the traffic criterion can be met.

5. Documented Evidence Gap in the CUP Record: No trip-generation calculation, traffic count, intersection/capacity/queue analysis, traffic-engineer report, site-access analysis, defined mitigation plan, binding attendance cap, vehicle cap, or service-time restriction appears in the CUP record.

6. Why This Is Appealable: The written justification and its supporting evidence are part of the basis for the CUP finding.

7. Why Approval Was Premature: The application acknowledged significant traffic without establishing its effects or a supported method for avoiding hazards before approval.

8. What the BCC Must Decide: Whether the response plus all other record materials was sufficient.

3. Commissioner Withers: visitor and trip information

1. Question and Answer: Question: Did the CPC know the project’s added visitor volume and traffic? **Answer:** Withers’ questions identify that information as central.

2. Official County Record: Withers asked: “As part of the application for the conditional use approval, was there any information about the potential for increased visitors per day or anything like that?” — **Official Certified Transcript, TR 206:19–23**

3. Filed Brief Position and Quote: *The filed brief challenges approval without a project-specific TIA or equivalent traffic evidence. — Filed Appeal Brief, pp. 8–9, §IV.A*

4. Why This Matters at the CUP Stage: Visitor volume and trip generation are fundamental inputs for evaluating undue congestion or hazards.

5. Documented Evidence Gap in the CUP Record: The record did not quantify project visitors or project-generated trips when the CPC acted. Luna explained that a substantial part of the TIA is to “nail down how many trips will be generated by the site.” — **TR 207:1–12**

6. Why This Is Appealable: This question goes directly to the evidence supporting the traffic finding.

7. Why Approval Was Premature: The CPC approved without the information Withers asked whether the application contained.

8. What the BCC Must Decide: Whether the existing record was adequate despite no quantified visitor or trip information.

4. Use-first reasoning and later engineering

1. Question and Answer: Question: Can the County approve the use now and solve traffic later? **Answer:** Final engineering may occur later; the filed brief maintains threshold traffic proof may not.

2. Official County Record: Gould said approval is “more about the use and less about the layout,” with traffic studies and drainage later at building permit. — **Official Certified Transcript, TR 82:1–4**

3. Filed Brief Position and Quote: “A permit-stage study can refine driveway geometry, internal circulation, and striping, but it cannot retroactively supply the substantial evidence needed for the threshold decision.” — **Filed Appeal Brief, p. 9, §IV.A**

4. Why This Matters at the CUP Stage: The CUP decides whether this use is appropriate at this site; later permits implement an approved entitlement.

5. Documented Evidence Gap in the CUP Record: No project-specific traffic analysis showed whether the use could safely operate at this location before the CUP decision. Withers asked how the CPC could evaluate impact “if we don’t have any idea of what sort of additional traffic it’s going to cause.” — **TR 208:3–8**

6. Why This Is Appealable: A decision based on a category of use rather than site evidence is reviewable for compliance with the applicable criterion.

7. Why Approval Was Premature: The entitlement issued before project-specific analysis established whether impacts could be avoided or mitigated.

8. What the BCC Must Decide: Whether the land-use/layout distinction permitted approval without the disputed traffic evidence.

5. ZA traffic finding and future review

1. Question and Answer: Question: Can a present no-undue-traffic finding rely on a future study? **Answer:** The filed brief says no.

2. Official County Record: The ZA found no undue traffic congestion or hazards while stating access improvements were “expected” and a TIA and possible road improvements would occur at building permit. — **Official ZA Notice of Decision, Findings 3 and 9**

3. Filed Brief Position and Quote: “The Board cannot satisfy a mandatory finding through speculation, assumptions, or a promise to study the issue later at permit review.” — **Filed Appeal Brief, p. 8, §IV.A**

4. Why This Matters at the CUP Stage: The finding is an evidentiary conclusion when the County acts, not merely a prediction about later review.

5. Documented Evidence Gap in the CUP Record: No TIA, equivalent engineer-prepared study, quantified project-trip analysis, or identified mitigation was in the record when the ZA finding was made.

6. Why This Is Appealable: The stated basis and the required finding can be reviewed for an evidentiary mismatch.

7. Why Approval Was Premature: The conclusion was entered before the future traffic study and possible improvements existed.

8. What the BCC Must Decide: Whether the ZA finding was adequately supported at the time of approval.

6. CPC Condition 9 and later mitigation

1. Question and Answer: Question: Did the later TIA condition cure the earlier traffic gap? **Answer:** It is a later safeguard; the filed brief concludes it did not cure the earlier evidence gap.

2. Official County Record: CPC Condition 9 requires a TIA at building permit. Luna said no permit would issue until the study and mitigation were approved and no opening would occur until required improvements were complete. — **Official Certified Transcript, TR 205–206**

3. Filed Brief Position and Quote: *“Conditions may refine access details, but they cannot retroactively supply the missing evidence needed for the Board’s threshold finding.”* — **Filed Appeal Brief, p. 25, §V**

4. Why This Matters at the CUP Stage: Later conditions may protect against construction or opening without permit compliance, but the CUP must still rest on the required evidence.

5. Documented Evidence Gap in the CUP Record: When the CPC acted, the record did not identify project trips, affected intersections, required improvements, mitigation feasibility, costs, agency approvals, or the result if mitigation proved inadequate.

6. Why This Is Appealable: Whether a later condition supplied an adequate basis for an earlier CUP finding is reviewable.

7. Why Approval Was Premature: The CPC approved before information needed to determine whether Condition 9 could cure impacts was available.

8. What the BCC Must Decide: Whether Condition 9 cured the evidence gap or remand is required.

7. Traffic scoping

1. Question and Answer: Question: Why should traffic scoping occur before CUP approval? **Answer:** The filed brief describes it as the early screen for determining whether a full TIA is required.

2. Official County Record: County Public Works states traffic analysis for unincorporated development begins with a Traffic Scoping Report. — **Official Bernalillo County Public Works Traffic Impact Analysis webpage**

3. Filed Brief Position and Quote: *“Section 8.4 mandates that high-intensity or multi-use assembly developments complete a traffic scoping report at the outset of the approval process to determine whether a full Traffic Impact Analysis is required.”* — **Filed Appeal Brief, p. 20, §IV.N**

4. Why This Matters at the CUP Stage: Scoping identifies roads, intersections, baseline needs, likely problems, and the scope of technical review.

5. Documented Evidence Gap in the CUP Record: No Traffic Scoping Report, PWTR number, waiver, or comparable written traffic-review determination appears in the CUP materials, NODs, or certified hearing record identified in this appeal.

6. Why This Is Appealable: The absence of a preliminary traffic determination is a procedural and evidentiary issue.

7. Why Approval Was Premature: The County acted before the record contained the early review needed to determine traffic-analysis scope.

8. What the BCC Must Decide: Whether scoping was required, performed, waived, or otherwise adequately addressed.

8. Hamm’s “some subjectivity”

1. Question and Answer: Question: Why did Hamm say there was subjectivity? **Answer:** He acknowledged the CPC lacked a completed TIA.

2. Official County Record: Hamm stated there was “some subjectivity built in here” because the County did not have the traffic impact analysis at that time. — **Official Certified Transcript, TR 209:15–24**

3. Filed Brief Position and Quote: *“Discretion is not a substitute for evidence and does not permit the Board to skip mandatory findings or rely on an incomplete file.”* — **Filed Appeal Brief, p. 7, §III.B**

4. Why This Matters at the CUP Stage: Evidence narrows uncertainty so agency judgment is exercised on facts.

5. Documented Evidence Gap in the CUP Record: The technical analysis that would calculate trips, model impacts, and identify mitigation was not in the record. Withers likewise asked how traffic impact could be evaluated without knowing added traffic. — **TR 208:3–8**

6. Why This Is Appealable: A mandatory finding made on an incomplete record is appealable under the substantial-evidence standard argued in the brief.

7. Why Approval Was Premature: The CPC decided traffic while the analysis intended to make the decision less subjective remained incomplete.

8. What the BCC Must Decide: Whether the available evidence was sufficient despite acknowledged uncertainty.

9. Equal treatment, RLUIPA, and noise

1. Question and Answer: Question: Does equal treatment exempt a religious use from neutral safety rules? **Answer:** No. Equal treatment means no special burden and no special exemption.

2. Official County Record: Withers asked whether the no-amplified-sound condition could discriminate against religious freedom. Staff answered that comparable nonreligious facilities near residences could receive the same type of condition. — **Official Certified Transcript, TR 215:21–TR 217:2**

3. Filed Brief Position and Quote: *“RLUIPA does not exempt religious institutions from neutral, applicable safety and traffic standards.”* — **Filed Appeal Brief, p. 7, §III.B**

4. Why This Matters at the CUP Stage: Equal treatment prevents discrimination and favoritism; comparable secular assembly uses are the relevant comparison.

5. Documented Evidence Gap in the CUP Record: The record does not establish a consistent multi-year practice applied to comparable religious and secular assembly uses; Hamm offered recollection about religious institutions.

6. Why This Is Appealable: Whether RLUIPA was correctly applied and neutral standards were applied evenhandedly are reviewable legal questions.

7. Why Approval Was Premature: The County relied on religious-institution practice before establishing the neutral evidence standard for comparable secular uses.

8. What the BCC Must Decide: Whether this proposal received the same neutral evidence standard as a comparable secular assembly use.

10. Community protection and neutral conditions

1. Question and Answer: Question: Can conditions protect neighbors while treating the religious use neutrally? **Answer:** Yes, if comparable uses receive comparable conditions.

2. Official County Record: Withers stated the County should be mindful of restrictions on religious institutions while respecting community interests and preventing disturbance that negatively affects private-property rights. — **Official Certified Transcript, TR 216:19–TR 217:18**

3. Filed Brief Position and Quote: *The brief requests neutral, evidence-based treatment; it does not request special treatment based on religion.* — **Filed Appeal Brief, p. 1**

4. Why This Matters at the CUP Stage: CUP conditions must protect health, safety, welfare, and compatibility without discrimination.

5. Documented Evidence Gap in the CUP Record: The pre-approval record contained no project-specific noise-mitigation plan, fire-marshall review, emergency-access plan, turning-radius analysis, grading/drainage plan, or hydrology report.

6. Why This Is Appealable: These gaps affect adequacy, welfare, ingress/egress, and compatibility findings.

7. Why Approval Was Premature: The findings issued while key supporting analyses remained incomplete or deferred.

8. What the BCC Must Decide: Whether the findings and conditions were adequately supported and enforceable.

11. Scope, safety, corridor, and Balloon Fiesta

1. Question and Answer: Question: Why does the site and corridor context matter? **Answer:** The use must be evaluated in its cumulative, event-season, and rural setting.

2. Official County Record: The conditions address school withdrawal, building size, parking, buffers, drainage, lighting, noise, and height. The record includes Balloon Fiesta comments and identifies the site in the Rural Area. — **Official CPC NOD; County materials cited in brief**

3. Filed Brief Position and Quote: *The brief identifies late revised plans, missing safety/supporting plans, and no current corridor or Balloon-Fiesta-specific analysis.* — **Filed Appeal Brief, pp. 9–10, 18–24, §§IV.B, K–Q**

4. Why This Matters at the CUP Stage: Scope, emergency access, drainage, height, buffers, parking, and operations determine whether a site and corridor can accommodate a use.

5. Documented Evidence Gap in the CUP Record: No current corridor-level, Balloon-Fiesta-specific, cumulative, regional-draw, or population-transfer traffic analysis was before the County; nor were the cited safety and drainage materials.

6. Why This Is Appealable: The claimed absences bear on traffic, adequacy, welfare, scope, and compatibility findings.

7. Why Approval Was Premature: The County approved a regional-draw use before completing the context-specific analysis identified by the brief.

8. What the BCC Must Decide: Whether the record adequately addressed site safety, corridor, Balloon Fiesta, and rural compatibility.

12. More information, continuance, and remedy

1. Question and Answer: Question: What could the County do if the record was incomplete?

Answer: It could obtain information and continue; the brief requests reversal or remand.

2. Official County Record: Hamm said the Commission could ask the applicant for clarification and, if more information was needed, staff could continue the matter so the public could be informed. — **Official Certified Transcript, TR 219:24–TR 221:16**

3. Filed Brief Position and Quote: *The brief requests: “Reverse or remand the approval,” require a project-specific TIA at the CUP stage, and clarify that “TIA deferral is not a substitute for Section 24 findings.”* — **Filed Appeal Brief, pp. 26–27, §VI**

4. Why This Matters at the CUP Stage: A continuance or remand allows the land-use decision to be made from a complete, publicly accessible record; it does not bar consideration of a religious use.

5. Documented Evidence Gap in the CUP Record: The traffic, scope, safety, compatibility, and procedural gaps identified above remained when the CPC acted.

6. Why This Is Appealable: The requested relief rests on alleged legal error, insufficient evidence, and procedural defects.

7. Why Approval Was Premature: The permit issued before the disputed threshold evidence and findings were complete.

8. What the BCC Must Decide: Whether reversal, modification, or remand is the appropriate remedy.

Official sources

- Filed Appeal Brief, pp. 1–36.
- Official County CUP Application, filed January 15, 2026, pp. 2, 6, 8–10.
- Official ZA Notice of Decision and Official CPC Notice of Decision/conditions.
- Official Certified Transcript: Bernalillo County Planning Commission Hearing Transcript, July 1, 2026, Julian Serna, CCR, Certified Court Reporter, especially TR 205–221.
- Official Bernalillo County Public Works Traffic Impact Analysis webpage.

This is an unofficial explanatory guide to official record documents and the filed appeal. It is not legal advice and does not amend the appeal.

13. Hamm's redefinition of the CUP as "just a land-use permit"

1. Question and Answer: Question: Did the Zoning Administrator redefine the CUP to justify deferring all substantive review to building permit? Answer: Yes. Hamm systematically characterized the CUP as merely a "use" decision, implying that traffic, safety, and infrastructure review could wait — contradicting the County's own CUP application requirements.

2. Official County Record: Hamm stated the CUP "approval is more about the use and less about the layout, and at building permit, things like traffic studies, drainage, all of those things occur as kind of a second part." He later admitted "the County would not have required them to provide a traffic impact analysis before the building permit process," and told Commissioners they could "absolutely require as a condition of approval with the building permit" — redirecting all substantive review away from the CUP stage. — Official Certified Transcript, TR 82:1-4, TR 211:1-2, TR 225:1-2, TR 227:7-9

3. Filed Brief Position and Quote: *"The Board cannot satisfy a mandatory finding through speculation, assumptions, or a promise to study the issue later at permit review."* — Filed Appeal Brief, p. 8, §IV.A

4. Why This Matters at the CUP Stage: The County's own CUP application requires the applicant to prove "the site for the proposed use can be developed in such a manner that excessive traffic congestion or similar hazards will not be created" — at the CUP stage, not at building permit. The CUP application packet includes a Traffic Scoping Report form. The County describes the CUP as a "discretionary approval" requiring a public hearing. A discretionary approval requires substantive review at the time of the decision — not deferral to a later administrative permit with no public hearing.

5. Documented Evidence Gap in the CUP Record: No Traffic Scoping Report, TIA, or equivalent traffic analysis was in the record when the CUP was approved. Hamm acknowledged "some subjectivity built in here" because the County did not have the TIA. Commissioner Withers recognized the problem: "We're tasked with determining whether or not this can be developed in a way that doesn't cause undue traffic, and then we're told that we won't get to find out whether or not this will cause undue traffic until after we approve it." — TR 209:15-24, TR 221:6-11; Official County CUP Application, p. 2

6. Why This Is Appealable: The County's own CUP application and TIA procedures require traffic review at the land-use stage. The County's TIA procedures trigger on "change in land use to a higher trip generation" and "non-residential development abutting and/or accessing a County or state-maintained road" — both of which apply here. Characterizing the CUP as "just a land-use permit" to avoid these requirements is a misapplication of County code.

7. Why Approval Was Premature: The CUP was approved without any project-specific traffic analysis in the record. By framing the CUP as "just a use decision," Hamm enabled the deferral of all substantive review to the building permit stage — where there is no public hearing, no public notice, and no community input. The CUP stage is the only stage where the community has a voice. Deferring all substantive review to building permit eliminates the community's only opportunity to be heard on traffic and safety.

8. What the BCC Must Decide: Whether the Zoning Administrator's characterization of the CUP as "just a land-use permit" — and the resulting deferral of all traffic review to building permit — was consistent with the County's own CUP application requirements, TIA procedures, and the substantive evidentiary burden imposed by Section 24.